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JUAN FERNANDEZ-BARQUIN
CLERK OF THE COURT & COMPTROLLER
MIAMI-DADE COUNTY, FL

DEVELOPMENT AGREEMENT

between

MAESTRA SUNSET, LLC,
a Florida limited liability company

and

CITY OF SOUTH MIAMI, a
Florida municipal corporation

DATED AS OF March 30, 2023



DEVELOPMENT AGREEMENT
(As defined by Section 20-8.9)

THIS DEVELOPMENT AGREEMENT ("Agreement"), as defined by Section 20-8.9, of the City's Land Development Code (LDC) is executed as of this 30th day of March, 2023, by and between the **CITY OF SOUTH MIAMI**, a Florida municipal corporation ("City") and **MAESTRA SUNSET, LLC**, a Florida limited liability company ("Developer").

RECITALS:

A. Developer has entered into a long-term ground lease with Sunset Miami Investments, Inc., a Florida corporation (the "Owner") for the property more particularly described in **Exhibit A** attached hereto (the "Property").

B. The City Commission adopted Resolution No. 118-22-15871 (the "Approval Resolution") which approved a Special Exception to allow a Large Scale Development project on the Property consisting of 316 residential dwelling units, 3,676 square feet of retail space and 1,353 square feet of leasing office at the Property (the "Project") pursuant to Section 20-8.9 of the City's Land Development Code ("LDC").

C. Section 20-8.9 of the City's LDC requires a Development Agreement to be entered into with respect to the Property which grants certain assurances regarding the construction, operation and maintenance of the proposed Project.

D. The City and Developer desire to enter into this Agreement for the purpose of setting forth the terms and conditions on which the Property is to be developed.

NOW, THEREFORE, in consideration of the premises and the mutual covenants herein contained, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the City and Developer hereby mutually covenant and agree as follows:

SECTION 1. EXHIBITS AND DEFINITIONS.

1.1 Exhibits. Attached hereto and forming a part of this Agreement are the following Exhibits¹:

- | | |
|-------------------------|---|
| <u>Exhibit A</u> | Legal Description of Property |
| <u>Exhibit B</u> | The Approval Resolution, approving the Special Exception
City of South Miami Resolution No. 118-22-15871 |
| <u>Exhibit C</u> | Development Schedule |
| <u>Exhibit D</u> | Joinder and Consent to Development Agreement |

¹ To the extent that any exhibit is in conflict with the language and terms of the Agreement, the language and terms of the Agreement shall govern.



Exhibit E

Resolution No. 035-23-15969

Approval of this Agreement and Rescission of a previous Development Agreement Recorded in Official Records Book 31141, Pages 4597 - 4625 of the Public Records of Miami-Dade County (the "Alta Sunset, LLC Development Agreement") (without attachments)

1.2 Defined Terms. In addition to other terms defined in this Agreement, as used herein the term:

"Acceptable Operator" is defined in the Standards of Operation for each project component.

"Approval Resolution" refers to City Commission Resolution No. 118-22-15871 which approved the Special Exception authorizing the large scale development on the Property subject to conditions.

"Affiliate" or "affiliate" means with respect to any Person (i) any Person directly or indirectly controlling, controlled by or under common control with such Person (ii) any officer, director, general partner, member; manager or trustee of such Person or (iii) any Person who is an officer, director, general partner, member, manager or trustee of any Person described in clauses (i) or (ii) of this sentence. For purposes of this definition, the terms "controlling," "controlled by" or "under common control with" shall mean the possession, direct or indirect, of the power to direct or cause the direction of the management and policies of a Person or entity, whether through the ownership of voting securities, by contract or otherwise, or the power to elect at least fifty percent (50%) of the directors, managers, general partners, or persons exercising similar authority with respect to such Person. For purposes hereof the term "Person" shall mean any legal entity, (including corporations and limited liability company), any association of individuals or business entities, any trust (including business trust, real estate investment trust, common law trust, or other trust), any partnership (including general partnership, limited partnership, limited liability limited partnership, limited liability partnership), joint venture, or two or more persons or entities (or any combination thereof and the estates of any of those individuals) having a joint or common economic interest, or any individual (or estate of such individual).

"Agreement" means this Development Agreement, as the same may be modified or amended from time to time.

"Applicant" means the person or entity who applied for a special exception approval of the Project pursuant to Section 20-8.9 of the Land Development Code (LDC).

"Application Documents" means the documents submitted as part of the Developer's application for approval of the special exception that are listed in Section 2.2 of this Agreement.



"City" unless otherwise specified or required by the context, means the City of South Miami.

"City Manager" means the City Manager of the City of South Miami.

"Completion Date" means that date of substantial completion as defined by Section 20-8.9 of the LDC.

"Developer" means **Maestra Sunset, LLC**, the long term ground lessee of the Property, with express consent from Sunset-Miami Investments, Inc., a Florida corporation, the Owner of the Property as set forth in Exhibit D.

"Event of Default" has the meaning ascribed to it in Section 3.3.

"Lender" means any lender, and any successor, assignee, transferee or designee of such lender, which provides financing, secured or unsecured, in connection with the Project, which shall include, without limitation, any mortgagee.

"LDC" means the City's Land Development Code.

"Project" shall mean the improvements developed by Developer on the Property pursuant to the Developmental Plans.

"Developmental Plans" refers collectively to the (i) plans for the proposed Project plans entitled "6075 Sunset Drive" prepared by MSA Architects, Inc., signed and sealed by registered Architect Jose Saumell (AR 0013085), consisting of forty-two (42) sheets; (ii) plans prepared by Witkin Hults + Partners, signed and sealed by registered Landscape Architect Andrew Witkin (LA #0000889), consisting of five (5) sheets; (iii) plans prepared by David Plummer & Associates, Inc., signed and sealed by registered Professional Engineer Todd Seymour (P.E. No. 52098), consisting of six (6) sheets dated 8/24/2022, and (iv) plan prepared by EXP., signed and sealed by registered Professional Engineer Roxana P. Matamoros (P.E. No. 77979), consisting of one (1) sheet, all as approved by the Approval Resolution and are listed in Section 2.1.

- 1.3 Effective Date and Term. This Agreement shall become effective on the Effective Date. The Agreement shall be recorded in the public records of Miami-Dade County, Florida, at the Developer's expense, and shall run with the land and shall be binding on all parties and all persons claiming under it from the Effective Date through the date the Approval Resolution expires (the "Term"), or five years, whichever occurs first.
- 1.4 Not Contract Zoning. This Agreement shall not be construed or deemed to be a contract or agreement by the City, in its municipal capacity, to grant approvals for the Project or with respect to any zoning decisions affecting the Project.



SECTION 2. PROJECT DEVELOPMENT AND GENERAL CONDITIONS.

2.1 Development Plans. Development of the property is subject to final review by the City's Environmental Review and Preservation Board and shall be in substantial compliance with the Approval Resolution and the following Development Plans:

- (a) Cover Sheet – Re-submittal dated 08/24/2022
- (b) Boundary Survey prepared by Leiter, Perez & Associates, Inc. dated 11/01/21 (revised 3/23/22)
- (c) Context Map dated 02/02/2022 (revised 08/08/2022)
- (d) Exhibits EX-1, EX-2, EX-3 dated 02/02/2022 (revised 08/08/2022)
- (e) SP-1 dated 02/02/2022 (revised 08/08/2022)
- (f) Sheets A-2.1 - A-2.11 (Levels 1-10 and Roof Plan) consisting of 11 sheets dated 02/02/2022 (revised 08/08/2022)
- (g) Sheets A-3.1-A-3.5 (Color Building Elevations and Building Section) consisting of 5 sheets dated 02/02/2022 (revised 08/08/2022)
- (h) Sheets A-4.1-A-4.4 (Unit Plans) consisting of 4 sheets dated 02/02/2022 (revised 08/08/2022)
- (i) Sheets RE-1 - RE-3 (Renderings) consisting of 3 sheets dated 02/02/2022 (revised 08/08/2022)
- (j) Tree Disposition Plan (Sheet TD-1) dated 07/01/2022 (revised 08/24/2022)
- (k) Ground Level Landscape Plan (Sheet L-1) dated 04/28/2022 (revised 08/24/2022)
- (l) 3RD Level Landscape Plan (Sheet L-2) dated 04/28/2022 (revised 08/24/2022)
- (m) Landscape Details (Sheet L-3) dated 04/28/2022 (revised 08/24/2022)
- (n) Aerial (Sheet L-4) dated 07/01/2022 (revised 8/24/2022)
- (o) Civil Site Plan (Sheet C-1.0)
- (p) Signing & Pavement Marking Plan (Sheet C-2.0)
- (q) Maneuverability Analysis (Sheets AT-1.0, AT-2.0, LD-1.0, and LD-2.0)
- (r) Photometric Plan (Sheet L-1.1) dated 7/07/2022
- (s) Statement of Landscape Compliance (prepared by Andrew Witkin, dated 7/18/2022)

2.2 Application Documents. Except where in conflict with the Approval Resolution, Development Plans, or the specific conditions listed in Section 2.3 of this Agreement, the Developer will be bound by representations or conditions of development provided in the following Application Documents

- (a) Amended Letter of Intent for Special Exception approval from Holland & Knight, LLP dated July 5, 2022



(b) Application for Special Exception dated May 3, 2022

(c) Traffic Study (prepared by Richard Garcia, dated April 12, 2022 and updated June 29, 2022)

2.3 Conditions. Developer shall adhere to the following construction and operation conditions:

(a) Construction General Conditions.

- a. A Construction and Maintenance of Traffic (MOT) Plan shall be provided by the Applicant to the Building and Public Works Departments for approval prior to start of construction. Access points by construction vehicles shall be provided within the MOT. All construction vehicles are prohibited from using Sunset Drive, unless otherwise approved by the Department.
- b. The Applicant shall provide for the reconstruction of the adjoining roadways, sidewalks, and drainage to their conditions prior to construction, or better, and to provide a performance bond equal to 100% of the total cost of reconstruction.
- c. The Applicant shall provide a Construction Air Quality Management Plan to the Department prior to the start of construction.
- d. A Construction, Demolition and Materials Management Plan (CDMMP) must be submitted by the Applicant at time of building permit.
- e. Construction shall only take place Monday through Friday during the hours of 7:00 a.m. and 6:00 p.m. On Saturdays, construction shall only take place during the hours of 9:00 a.m. through 5:00 p.m.

(b) Landscaping Conditions:

- a. The Applicant shall meet all the minimum requirements of the City Code, Chapters 18 and 24 of the Miami-Dade County Code and specifically comply with all conditions imposed by Miami-Dade County Department of Regulatory and Economic Resources, if any.
- b. The property shall be landscaped in accordance with the landscape plan, included with the site plan submittal.
- c. Pursuant to Sec. 20-4.5, as may be amended, the Applicant shall preserve existing trees (including native trees) during the development of the project, wherever possible. If the trees must be removed or relocated, the Applicant shall be required to obtain a tree removal permit from the City prior to the removal and/or relocation of any tree and mitigate the impact in accordance with City requirements. If the relocated trees do not survive, the Applicant shall be required to replace the trees in compliance with City requirements.



(c) Environmental Conditions:

- a. The Applicant shall meet the requirements of the Miami-Dade County Water-Use Efficiency Standards Manual, effective January 2009, as may be amended from time to time.
- b. All storm water drainage systems, including the stormwater vault under the park, shall be maintained in working order at all times in order to avoid localized flooding during and after a storm. Parking shall be prohibited on top of any drainage inlet or drainage manhole.

(d) Architecture Conditions:

- a. Substantial compliance with the approved plans to include: design, materials, and color palette, subject to the approval of the Environmental Review and Preservation Board.

(e) Miscellaneous Conditions

- a. All documents submitted with this application are to be made part of the record.
- b. All off-site improvements required under any approvals shall be completed prior to the first Certificate of Occupancy unless such deadline is extended.
- c. Any improvements in the Public Right-of-Way shall be approved by the applicable agency (Florida Department of Transportation (FDOT), Miami-Dade County and/or City of South Miami).
- d. All impact fees shall be paid prior to issuance of building permit.
- e. The Applicant shall provide a letter acknowledging compliance with the applicable Level of Services requirements prior to the issuance of final permit to the property. If any concurrency approvals expire a re-review shall be required by the appropriate agency.
- f. Any changes that increase densities, intensities, or population shall require a new Concurrency Analysis.
- g. Applicant shall submit verification from Miami-Dade County that the proposed new development has been reviewed and approved for all access management considerations prior to site plan approval.
- h. Flood elevations shall be reviewed and approved for consistency with FEMA requirements and the City's National Insurance Flood Program Ordinance prior to building permit approval.
- i. The Applicant, and the owner if other than the Applicant, shall comply with applicable conditions and requirements by Miami-Dade County Public Works Department, Fire Rescue Department, Department of Regulatory and Economics Resources - Division of Environmental Management (RER-DERM), and Miami-Dade County Water and Sewer



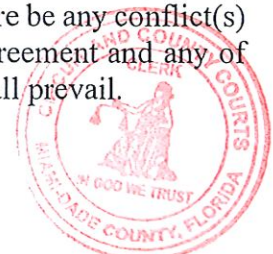
Department, and FDOT, if any.

- j. The Applicant, and the owner if other than the Applicant, shall execute and record in the public records of Miami-Dade County, a Maintenance Covenant, in a form as drafted by the City Attorney and approved by the City Commission, which complies with the requirements of Land Development Code Section 20-8.9 and which contains all commitments made and conditions imposed as part of the approval of the Application.
- k. Applicant, and the owner if other than the Applicant, shall comply with all requirements set forth in Section 20-8.9 in addition to those set forth in the Resolution unless there is a conflict, in which event Section 20-8.9 shall take precedent. A copy of the Resolution is attached as **Exhibit B** to this Agreement.
- l. If during the review process it is determined that the development, as proposed, will potentially cause adverse impact, the Planning Department shall recommend remedial measures to eliminate or reduce, to the extent possible, these impacts. Development projects that are recommended for remedial measures will not be required to submit a new application unless it is determined by the Department that additional changes which would have the effect of increasing densities, square footage or altering the height or use of a Development have been made. Remedial measures may include, but are not limited to:
 - i. Additional screening or buffering;
 - ii. Additional landscaping;
 - iii. Relocation of proposed open space, or alteration of the use of such space;
 - iv. Pedestrian and bicycle safety and access;
 - v. Changes to ingress and egress;
 - vi. Addressing traffic flow to and from the development to avoid intrusion on local streets in nearby single-family residential areas; or
 - vii. Improvement of the streets adjacent to the project, if applicable.
- m. The required bike room and number of bicycle spaces for both residents and the public must be maintained in perpetuity as a requirement of being granted a Bonus Floors.
- n. The required Plaza must be maintained and open to the public in perpetuity as a requirement of being granted a Bonus Floor.
- o. Pursuant to Sec. 20-4.3, LDC, Sign Regulations, a Master Signage Plan be submitted, under separate permit.
- p. An Access Agreement for the plazas must be submitted to the City and approved by the City Commission.



- q. The Applicant must post a Sustainability Fee Payment Bond or fully pay the Sustainability Fee in an amount equal to five Percent (5%) of the construction value per Sec. 20-8.13 (B)(6)(a), LDC.
- r. The Applicant must meet the Art In Public Places requirement, pursuant to City Code Section 7-17.
- s. The project must obtain Environmental Review and Preservation Board approval prior to issuance of a Building Permit.
- t. The project must meet the requirements of Sec. 20-4.4(G), LDC relating to Electric Vehicles.
- u. The Application meet the requirements of Sec. 20-8.13(B), LDC, Green Buildings.
- v. A signed and sealed Stormwater Pollution Prevention Plan must be submitted at the time of application for a building permit.
- w. A signed and sealed Paving, Grading and Drainage Plan be submitted at the time of 164 application for a building permit.
- x. Preliminary drainage calculations must be submitted to the City's Public Works Department showing that the site can maintain its required drainage.
- y. All ADA standards and requirements must be met.
- z. All tree grates and sidewalk widths must meet ADA requirements.
- aa. The column in the site triangle must be addressed to the satisfaction of the City before a certificate of Use or Occupancy may be issued.
- bb. The Auto Turn diagram be corrected before the issuance of a building permit.
- cc. The project must meet the requirements of Sec. 20-8.4(D) of the LDC relating to Affordable Housing including plans for and construction of 32 affordable housing units within the Project.
- dd. A signed and sealed Geotechnical Report confirming concrete sidewalk and pavement sections and hydraulic conductivity for the soils be submitted at the time of application for a building permit.
- ee. The Developer shall pay all sums then due to the City or its consultants for cost recovery pursuant to Section 2-7 of the Code prior to consideration of a site plan application by the Environmental Review and Preservation Board, and thereafter, any sums due for cost recovery prior to obtaining review of any building permit application.

2.4 Interpretation. In determining the enforcement of this Agreement, the order of precedence of documents shall be first, this Agreement; second, the Approval Resolution; third, the City's Code of Ordinances and LDC; fourth, the Development Plans, and fifth, the Application Documents. As such, should there be any conflict(s) with respect to the interpretation and/or enforcement of this Agreement and any of the subordinate documents, then the terms of this Agreement shall prevail.



SECTION 3. ADDITIONAL REQUIREMENTS.

- 3.1 Unit Mix. A total of 316 residential units shall be provided throughout floors 3-10. The mix of residential dwelling units shall be as follows:

One Bedroom Units

Square Footage Range	Approx. 573 square feet - 1,020 square feet
Number of Floor Plan Types	7

Two Bedroom Units

Square Footage Range	Approx. 877 square feet - 1,195 square feet
Number of Floor Plan Types	6

- 3.2 Affordable Housing. A minimum 32 dwelling units shall be reserved for rental or sale as Affordable Housing as that term is defined in Section 20-2.3 of the LDC. As provided in Section 20-8.4(D) of the LDC, Developer and Owner shall execute and record a covenant running with the land, approved in form and substance by the City Attorney and City Manager which complies with the Affordable Housing requirements of Section 20-4.9 of the LDC. The affordable units shall comprise of eight (8) two-bedroom units and twenty-four (24) one bedroom units.
- 3.3 Bicycle Support. The building shall be developed with at least one (1) secure bike parking room capable of parking twenty-eight (28) bicycles, a bicycle repair station, and will provide for loaner bicycle(s) for building residents and employees.
- 3.4 Public Open Spaces. All public open spaces indicated on the Developmental Plans (the "Public Open Spaces") will be open to the public in perpetuity, subject to (a) closures required from time to time for replacement and repair and (b) reasonable limitations on hours of operation as established by Developer from time to time. The Public Open Spaces will be maintained by Developer at a level of quality equal to or higher than City's standards for municipal public open spaces in effect on the date hereof.
- 3.4.1 Public Plaza. The Development shall be developed with at least 7,500 square feet of total public plaza space designed in accordance with the Development Plans.
- 3.4.2 Events in and Around Public Open Spaces. From time to time, the Developer may sponsor or similarly partner with organizations to hold temporary special events in and around the Public Open Spaces. Developer shall obtain all permits required for any special event under the City's Code and/or LDC in advance of the event.
- 3.5 Parking. Developer shall construct and provide 327 vehicle parking spaces in



accordance with the Developmental Plans.

3.6 Signs. This Agreement shall not be construed as granting any specific rights to signage depicted in the Development Plans or described in the Application Documents. All Project signs shall be subject to the requirements of applicable federal, state, or local rules, orders, regulations, laws, statutes, or ordinances.

SECTION 4. LAND USES.

- 4.1 Land Uses. Developer and the City agree, for themselves and their successors and assigns, during the term of this Agreement, to devote the Property and the Project only to the uses specified in this Agreement and to be bound by and comply with all of the provisions and conditions of this Agreement.
- 4.2 Character and Operation Standards of Property and Project. The parties recognize and acknowledge that the manner in which the Project is developed, operated and maintained are matters of critical concern to the City. Therefore, the Developer hereby agrees to develop, operate and maintain the Project and all other property and equipment located thereon which are owned, leased or maintained by Developer in good order, condition, repair and appearance and in a manner and in compliance with all applicable federal, state or local laws, rules, regulations, codes or ordinances. To help accomplish this result, Developer will establish such reasonable rules and regulations governing the use and operation of the Project by operators and tenants therein as Developer shall deem necessary or desirable in order to assure the level of quality and character of operation of the Project required herein, and Developer will use best efforts to enforce such rules and regulations.
- 4.3 Use Prohibitions of the Property and Developer Improvements. The Property shall not be used by Developer nor shall Developer permit the use of same for the following: Any unlawful or illegal business, use or purpose, or for any business, use or purpose which is immoral or disreputable (including without limitation "adult entertainment establishments" and "adult" bookstores) or extra- hazardous, or in such manner as to constitute a nuisance of any kind (public or private), or for any purpose or in any way in violation of the certificates of occupancy (or other similar approvals of applicable governmental authorities) or of rules, regulations, ordinances or laws applicable to the Property.

SECTION 5. TIMING.

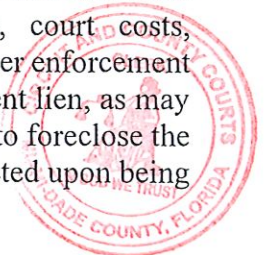
- 5.1 Development Schedule. It is currently contemplated by the Developer that the Property shall be developed in accordance with the time frames set forth on Exhibit C attached hereto. The Developer shall advise the Planning and Zoning Director in writing of any material change to the Development Schedule. The Development Schedule, or any change filed with the Director, shall not alter or extend expiration dates set forth in the City Code or the LDC.



- 5.2 Force Majeure. It shall not constitute a default or a failure to cure if a default or failure to cure is caused by, or results from, any of the following: acts of God; acts of government, strikes, lock-outs, labor troubles, inability to procure materials, adverse weather conditions; declaration of a state of emergency under Section 252.363, Florida Statutes (2022) where the underlying natural condition directly affects the geographic area of the City ("Emergency Declaration"); accidental fire that could not have been prevented through the exercise of reasonable precautions; war; civil unrest; accidents that could not have been prevented through the exercise of reasonable precautions; pandemics; hostile attacks by a third party against computer systems or networks, or other similar events beyond the control of such party (each, a "Force Majeure Event"). The party whose performance is prevented, hindered or delayed by a Force Majeure Event shall immediately notify the other party as quickly as practicable of the occurrence of the Force Majeure Event, and shall describe in reasonable detail the nature and estimated duration of the Force Majeure Event and such performance or obligation shall be excused for the time of such delay. Notwithstanding the above, the Approval Resolution or any related approval shall not be automatically extended by an Emergency Declaration except where the requirements of Section 252.363, Florida Statutes, are timely met.

SECTION 6. ENFORCEMENT.

- 6.1 Default, Cure, and Code Enforcement. Upon the City's written notice of any alleged default in Developer's obligations under any section in this Agreement, the Developer shall have no less than thirty (30) days to cure such alleged default. The Developer may request an extension of time from the City Commission which shall be granted ("Extended Cure Period") if the Commission finds, based on substantial competent evidence, that the Developer has acted in good faith and pursued a cure with due diligence, and that there are justifiable reasons for the delay and the amount of time sought by Developer to cure the default. The Developer's failure to timely cure shall constitute an event of default ("Default") and may, at the City's option, result in termination of this Agreement and/or other enforcement action including but not limited to initiation of code enforcement proceedings and imposition of fines at the maximum amount allowed by law for each day the Developer remains in default thereafter, plus interest. For the purpose of this section, any Default shall be deemed a civil infraction and violation of Section 20-8.9 of the LDC as of the date upon which the cure period ends. If the City elects to initiate code enforcement proceedings against the Developer for a Default, the City shall proceed with enforcement as provided in Section 2-25 of the City Code.
- 6.2 Fine; Enforcement Expenses; Lien. In addition to code enforcement fines and interest, Developer shall be liable to the City for its actual expenses to enforce the Agreement, including but not limited to administrative costs, court costs, professional fees. The City, at its option and without waiving any other enforcement mechanism, may file a lien, or impose a continuing special assessment lien, as may be applicable, for fines and costs, against the Property and may seek to foreclose the lien in accordance with applicable law. The City's lien shall be perfected upon being



recorded in the Public Records of Miami-Dade County, Florida, and shall be of equal rank and dignity as the lien of City's ad valorem taxes and superior in rank and dignity to all other liens, encumbrances, titles and claims in, to, or against the land in question, unless in conflict with state statutes or Miami-Dade County code.

- 6.3 Litigation, Obligations, Rights and Remedies Cumulative. At the City's option, enforcement of this Agreement may be by action against any parties or person violating, or attempting to violate, any covenants set forth in this Agreement. The prevailing party in any action or suit pertaining to or arising out of this Agreement shall be entitled to recover, in addition to costs and disbursements allowed by law, such sum as the Court may adjudge to be reasonable for the services of his/her/its attorney. The rights, remedies and privileges of the parties to this Agreement, whether provided by law or by this Agreement, shall be cumulative, and the exercise by either party of any one or more of such remedies shall neither be deemed to constitute an election of remedies, nor shall it preclude the party exercising such other additional rights, remedies or privileges, or from exercising at the same or different times, of any other such remedies for the same default or breach, or of any of its remedies for any other default or breach by the other party. The provisions of this paragraph shall survive the termination of this Agreement.
- 6.4 Withholding of Permits. In the event of a Default, in addition to any other remedy pursued by the City, the City shall withhold permits, approvals, and inspections until the Default is cured.
- 6.5 Governing Laws. This Agreement shall be governed and construed in accordance with the laws of the State of Florida. The Developer and the Village agree that Miami-Dade County, Florida is the appropriate venue in connection with any litigation between the parties with respect to this Agreement.
- 6.6 Waiver of Jury Trial. CITY AND DEVELOPER KNOWINGLY, IRREVOCABLY VOLUNTARILY AND INTENTIONALLY WAIVE ANY RIGHT EITHER MAY HAVE TO A TRIAL BY JURY IN STATE OR FEDERAL COURT PROCEEDINGS IN RESPECT TO ANY ACTION, PROCEEDING, LAWSUIT OR COUNTERCLAIM ARISING OUT OF THIS DEVELOPMENT AGREEMENT.

SECTION 7. MISCELLANEOUS PROVISIONS

- 7.1 No Partnership or Joint Venture; No Independent Contractor. Nothing contained in this Agreement is intended or shall be construed in any manner or under any circumstances whatsoever as creating or establishing the relationship of co-partners, or creating or establishing the relationship of a joint venture between the City and Developer, or as constituting Developer as the agent or representative of the City for any purpose or in any manner whatsoever. Nothing contained in this Agreement shall be construed or deemed to name, designate, or cause (either directly or implicitly) the Developer, or any contractor of the Developer to be an agent of or in partnership with the City.



- 7.2 Recording, Successor and Assigns. The Agreement shall be recorded in the public records of Miami-Dade County, Florida, at the expense of the Developer, and shall run with the land and shall be binding upon the Developer, and their respective successors and assigns.
- 7.3 Non-Discrimination. No covenant, agreement, lease, conveyance or other instrument concerning the sale, lease, use or occupancy of the Property and Developer Improvements or any portion thereof shall be affected or executed by Developer, or any of its successors or assigns, whereby the Property and Developer Improvements or any portion thereof is restricted by Developer, or any successor in interest, upon the basis of race, color, religion, sex, national origin, or handicap. Developer will comply with all applicable state and local laws, in effect from time to time, prohibiting discrimination or segregation by reason of race, color, religion, sex, national origin, or handicap in the sale, lease, use or occupancy of the Property and Developer Improvements or any portion thereof. Furthermore, Developer agrees to make accommodations for the handicapped as required by law and that no otherwise qualified handicapped individual shall, solely by reason of his or her handicap, be excluded from participation in, be denied the benefits of, be denied access to facilities within the Property and Developer Improvements or be subjected to discrimination under any program or activity allowed under this Agreement except as permitted by law.
- 7.4 Notice. A notice or communication, under this Agreement by the City, on the one hand, to Developer, or, on the other, by Developer to the City shall be sufficiently given or delivered if dispatched by hand delivery or, by nationally recognized overnight courier providing receipts, or by registered or certified mail, postage prepaid, return receipt requested to:

To Developer:

To: Maestra Sunset, LLC
Attn: Interamerican Corporate Services, LLC
2525 Ponce De Leon Blvd., STE. 1225
Coral Gables, FL 33134

cc: Maestra Real Estate, LLC
2828 Coral Way, Suite 462
Miami, FL 33145
Attn: Juan Poleo

cc: Holland & Knight, LLP
701 Brickell Avenue, Suite 3300
Miami, Florida 33131
Attn: Ines Marrero-Priegues, Esq. and James R. Williams Jr., Esq.



To City:

To: City of South Miami
6130 Sunset Drive
South Miami, Florida 33143
Attn: Genaro "Chip" Iglesias, City Manager

cc: City Attorney
City of South Miami
Weiss Serota Helfman Cole & Bierman, P.L.
2800 Ponce de Leon Blvd, Suite 1200
Coral Gables, Florida 33134
Attn: Lillian Arango and Tony Recio, City Attorneys
With copy by email at larango@wsh-law.com and trecio@wsh-law.com

or if such notice is addressed in such other way in respect to any of the foregoing parties as that party may, from time to time, designate in writing, dispatched as provided in this Section 7.4. It shall be the duty of the parties to advise each other of any change of address and if delivery of a notice or communication is returned as undeliverable or unclaimed, it shall be deemed delivered for all purposes as allowed or required by this Agreement.

- 7.5 Captions. The section headings and captions of this Agreement are for convenience and reference only and in no way define, limit, describe the scope or intent of this Agreement or any part thereof, or in any way affect this Agreement or any part thereof.
- 7.6 Counterparts. This Agreement is executed, in counterparts, each of which shall be deemed an original, and such counterparts shall constitute one and the same instrument. This Agreement shall become effective only upon execution and delivery of this Agreement by the parties hereto.
- 7.7 Sovereign Immunity. Nothing in this Agreement shall be deemed or otherwise interpreted as waiving the City's sovereign immunity protections existing under the laws of the State of Florida, or as increasing the limits of liability as set forth in Section 768.28, Florida Statutes.
- 7.8 Entire Agreement. This Agreement and its Exhibits constitute the sole and only agreement of the parties hereto with respect to the subject matter hereof and correctly set forth the rights, duties, and obligations of each to the other as of its date. Any prior agreements, promises, negotiations, or representations not expressly set forth in this Agreement are of no force or effect and are merged into this Agreement.
- 7.9 Amendments. No amendments to this Agreement shall be binding on either party unless in writing and signed by both parties. Although this Agreement shall run with the land, amendments, modifications or releases of this Agreement shall be by mutual written agreement between: (a) the City and its successors and assigns (which must be a governmental entity); and (b) Developer or its successors and assigns that are



expressly designated in writing as receiving the rights and obligations of Developer under this Agreement ("Express Assigns") (i.e., even if the Property is subdivided and more than one (1) owner exists for the Property, then amendments to the Development Agreement shall only be required to be executed by the City and Developer or its Express Assigns); provided, however, that in the event that any amendment, modification or release of this Agreement materially affects the rights of an owner of a portion of the Property, then any amendment to this Agreement shall also require the consent of such property owner. In the event of a modification to the Development Agreement or a designation of an Express Assign, a written instrument must be duly executed, acknowledged and recorded in the Public Records of Miami-Dade County, Florida. If any portion of the Property has been submitted to the condominium form of ownership, and an amendment, modification or release of this Agreement requires the consent of the owner of such portion of the Property as provided above, then only the condominium association thereof shall be required to execute the instrument as to that portion of the Property (in lieu and on behalf of the condominium unit owners thereof).

- 7.10 Waiver. No waiver made by either party with respect to performance, or manner or time thereof, of any obligation of the other party or any condition to its own obligation under this Agreement shall be considered a waiver of any rights of the party making the waiver with respect to the particular obligations of the other party or condition to its own obligation beyond those expressly waived in writing and to the extent thereof, or a waiver in any respect in regard to any other rights of the party making the waiver or in regard to any obligation of the other party.
- 7.11 Authorization and Approvals by the City. All requests made to the City for action or approval must be sent to the City Manager and it is the City Manager who must act or approve the matter on behalf of the City. Nothing contained herein relinquishes the duty of the Developer to seek approval of the City Commission, the Planning and Zoning Board or the Environmental Review and Preservation Board when required by the City Code or the LDC.
- 7.12 Time is of the Essence. Except as otherwise expressly set forth herein, time periods shall be determined on calendar days, provided that if the final date of any period which is set out in any paragraph of this Agreement falls upon a day which is not a Business Day, then, and in such event, the time of such period will be extended to the end of the next Business Day. "Business Day" means any day that banks in Miami-Dade County, Florida are open for business, excluding Saturdays and Sundays. TIME IS OF THE ESSENCE with respect to any date set forth in this Agreement.
- 7.13 Severability. In the event any term or provision of this Agreement is determined by appropriate judicial authority to be illegal or otherwise invalid, such provision shall be given its nearest legal meaning or construed as deleted as such authority determines, and the remainder of this Agreement shall be construed to be in full force and effect.
- 7.14 Authority. Developer and Owner confirm that each has the full right, title, and



authority to enter into this Agreement and grant the easements contemplated herein without need for joinder from any mortgagee or other party.

7.15. Cooperation; Expedited Permitting; and Time is of the Essence. The Parties agree to cooperate with each other to the full extent practicable pursuant to the terms and conditions of this Agreement. The City shall use reasonable efforts to expedite the permitting review and approval process in an effort to assist the Developer in meeting its demolition, development, and construction completion schedules. To the extent practicable, the City may accommodate requests from the Developer's agents, representatives, general contractor(s), and subcontractors for simultaneous review of multiple permitting packages, such as those for site work and foundations, and building shell, core, and interiors. Notwithstanding the foregoing, the City shall not be obligated to issue development permits to the extent the Developer does not comply with the applicable requirements of the LDC, development approvals for the Project, the Comprehensive Plan, this Agreement, applicable building codes, or any other laws, rules, orders, or regulations.

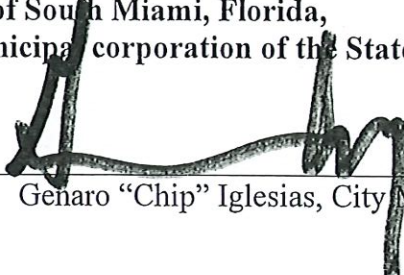
Section 7.23 Conflicts of Interest: City Representatives Not Individually Liable. No member, official, representative, or employee of the City has any personal interest, direct or indirect, in this Agreement, nor will any such member, official, representative or employee participate in any decision relating to this Agreement which affects his or her personal interest or the interest of any corporation, partnership or association in which he or she is, directly or indirectly, interested. No member, official, elected representative or employee of the City is personally liable to Developer or any successor in interest in the event of any default or breach by the City or for any amount which may become due to Developer or successor on any obligations under the terms of the Agreement.

[SIGNATURE PAGES TO FOLLOW]



IN WITNESS WHEREOF, the parties hereto have caused the execution of this Development Agreement by their duly authorized officials on or before the day and year first above written.

City of South Miami, Florida,
a municipal corporation of the State of Florida

By: 
Genaro "Chip" Iglesias, City Manager

ATTEST:


Nkenga A. Payne, CMC, City Clerk

Approved as to Form, Language, Legality,
and Execution thereof:


Tony Recio, City Attorney



WITNESSES:

MAESTRA SUNSET, LLC,
a Florida limited liability company

By: [Signature]
Print Name: Inés Marrero-Fríguez

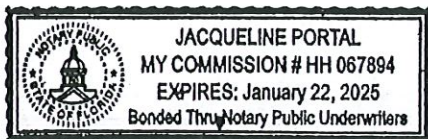
By: [Signature]
Print Name: Nicolas Sommerhoff
Title: Manager

By: [Signature]
Print Name: Daymis Rosa

STATE OF FLORIDA)
) ss:
COUNTY OF MIAMI-DADE)

The foregoing instrument was acknowledged before me by means of ☒ physical presence or ☐ online notarization, this 1st day of Sept, 2023, by Nicolas Sommerhoff as Manager of Maestra Sunset, LLC, a Florida limited liability company. ☒ He/She is ☐ personally known to me or ☒ who has produced FL Driver License as identification.

[NOTARIAL SEAL]



[Signature]
Print Name: Jacqueline C. Portal
Notary Public, State of Florida
Commission #: HH 067894
My Commission Expires: 1/22/2025



EXHIBIT "A"

Legal Description

ALL OF TRACT A, LESS THE EAST 118 FEET OF THE NORTH 129.07 FEET, IN BLOCK 1, AND LOT 3, IN BLOCK 1, OF "ROSSWOOD", ACCORDING TO THE PLAT THEREOF, AS RECORDED IN PLAT BOOK 13, AT PAGE 62 IN THE PUBLIC RECORDS OF MIAMI-DADE COUNTY, FLORIDA, LESS THE SOUTH 25 FEET OF SAID BLOCK 1.



EXHIBIT "B"

**Special Exception Approval
City of South Miami Resolution No. 118-22-15871**



RESOLUTION NO. 118-22-15871

A Resolution pursuant to Section 20-8.9 and other provisions of the City of South Miami Land Development Code approving by Special Exception a large-scale development on a 1.6124-acre property located at 6075 Sunset Drive and as legally described herein.

WHEREAS, the applicant, Sunset-Miami Investments, Inc./Maestra Sunset, LLC, submitted an application requesting a Special Exception approval for a Large-Scale Development for a mixed-use building located at 6075 Sunset Drive; and

WHEREAS, the applicant has submitted a concurrent request to change the zoning from Transit-Oriented Development District Mixed-Use 5 (TODD MU-5) to Transit-Oriented Development District Mixed-Use 6 (TODD MU-6); and

WHEREAS, the 1.6124-acre site is identified on the City's maps as 6075 Sunset Drive, identified by the Miami-Dade County Property Appraiser as Folio No. 09-4025-011-0010, and is described in Exhibit 1 to this resolution; and

WHEREAS, the proposed development will provide 316 residential units and 3,676 sq. ft. of retail uses in a 10-story building containing 480,086 square feet of floor area; and

WHEREAS, pursuant to Land Development Code (LDC) Section 20-8.9 Special exceptions, any site that is in excess of 40,000 square feet or any development in excess of four (4) stories, shall be designated as a Large-Scale Development and reviewed by the Planning Board and shall require approval by the City Commission; and

WHEREAS, at its July 26, 2022, meeting, the Planning Board held a public hearing on the application, considered each of the requirements and conditions for Large Scale Development listed in Section 20-8.9 of the LDC, and voted six (6) to zero (0) to recommend Approval of the requested Special Exception; and

WHEREAS, Section 20-8.9 (C) requires that all uses in a large scale development must comply with the following general requirements and any other requirements that the City Commission may consider appropriate and necessary.

1. All such uses shall comply with all requirements established in the appropriate zoning use district, unless additional or more restrictive requirements are set forth below or by the City Commission.
2. All such uses must be of a compatible and complementary nature with any existing or planned surrounding uses.
3. The City Commission shall determine the overall compatibility of the development with the existing or planned surrounding uses; and



WHEREAS, Section 20-8.9 (C) requires that the development will:

1. Not adversely affect the health or safety of persons residing or working in the vicinity of the proposed use;
2. Not be detrimental to the public welfare, property, or improvements in the neighborhood; and
3. Complies with all other applicable Code provisions; and

WHEREAS, the Mayor and City Commission of the City of South Miami, having considered each of the Special Exception requirements and conditions and having found that those conditions have been met, desire to approve the application for the Special Exception.

NOW, THEREFORE, BE IT RESOLVED BY THE MAYOR AND CITY COMMISSION OF THE CITY OF SOUTH MIAMI, FLORIDA:

Section 1: The recitals set forth in this resolution are true and they are supported by competent substantial evidence, and they are incorporated into this resolution by reference as if set forth in full herein.

Section 2. The application submitted by Sunset-Miami Investments, Inc./Maestra Sunset, LLC, requesting a Special Exception for a Large-Scale Development for a mixed-use building consisting of residential and retail uses within the TODD (MU-6) zoning district located at 6075 Sunset Drive, South Miami, Florida, complies with the requirements of 20-8.9 (C) and (D) and is hereby approved with the following conditions:

General Conditions

1. The proposed development will be substantially built in accordance with the documents submitted including: Letters of Intent, as amended; Architectural Plans submitted entitled "6075 Sunset Drive" prepared by MSA Architects, Inc. consisting of 42 Sheets: Cover Sheet – Re-submittal – 08/24/2022; Survey prepared by Leiter, Perez & Associates, Inc. dated 11/01/21 (revised 3/23/22); Context Map prepared by MSA Architects, Inc. dated 02/02/2022 (revised 08/08/2022); Exhibits EX-1, EX-2, EX-3 prepared by MSA Architects dated 02/02/2022 (revised 08/08/2022); SP-1 prepared by MSA Architects, Inc. dated 02/02/2022 (revised 08/08/2022); Sheets A-2.1-A-2.11 (Levels 1-10 and Roof Plan) prepared by MSA Architects, Inc. consisting 11 sheets dated 02/02/2022 (revised 08/08/2022); Sheets A-3.1-A-3.5 (Color Building Elevations and Building Section) prepared by MSA Architects, Inc. consisting 5 sheets dated 02/02/2022 (revised 08/08/2022); Sheets A-4.1-A-4.4 (Unit Plans) prepared by MSA Architects, Inc. consisting of 4 sheets dated 02/02/2022 (revised 08/08/2022); Sheets RE-1-RE-3 (Renderings) prepared by MSA Architects, Inc. consisting of 3 sheets dated 02/02/2022 (revised 08/08/2022); Landscape Plans prepared by Witkin Hults + Partners consisting of 1 sheet (TD-1) dated 07/01/2022 (revised 08/04/2022), Sheets L-1-L-2 dated 04/28/2022 (revised 08/04/2022), Sheet L-3 dated 04/28/2022 (revised 08/04/2022), Sheet L-4 dated 07/01/2022 (revised 08/04/2022).



08/04/2022) and Statement of Landscape Compliance dated 7/18/2022); Civil Plan(C-1.0), Signing & Pavement Marking Plan (C-2.0) and Maneuverability Analysis (LD-1.0, LD-2.0, AT-1.0 and AT-2.0) prepared by David Plummer & Associates dated 08/05/2022 consisting of 6 sheets; Photometric Plan (Sheet L-1.1) prepared by EXP dated 07/07/2022; and, Traffic Study dated April 12, 2022 and updated June 29, 2022 prepared by Richard Garcia & Associates.

2. All documents submitted with this application are to be made part of the record.
3. All off-site improvements required under any approvals shall be completed prior to the first Certificate of Occupancy unless such deadline is extended by the City Manager.
4. Any improvements in the Public Right-of-Way shall be approved by the applicable agency (Florida Department of Transportation (FDOT), Miami-Dade County and/or City of South Miami).
5. All impact fees shall be paid prior to issuance of building permit.
6. The Applicant shall provide a letter acknowledging compliance with the applicable Level of Services requirements prior to the issuance of final permit to the property. If any concurrency approvals expire a re-review shall be required by the appropriate agency.
7. Any changes that increase densities, intensities, or population shall require a new Concurrency Analysis.
8. Applicant shall submit verification from Miami-Dade County that the proposed new development has been reviewed and approved for all access management considerations prior to site plan approval.
9. Flood elevations shall be reviewed and approved for consistency with FEMA requirements and the City's National Insurance Flood Program Ordinance prior to building permit approval.
10. The Applicant, and the owner if other than the Applicant, shall comply with applicable conditions and requirements by Miami-Dade County Public Works Department, Fire Rescue Department, Department of Regulatory and Economics Resources - Division of Environmental Management (RER-DERM), and Miami-Dade County Water and Sewer Department, and FDOT, if any.
11. The Applicant, and the owner if other than the Applicant, shall execute a Large-scale Development Agreement (Development Agreement) that has been drafted by the City Attorney in accordance with Section 20-8.9 and approval by the City Commission.
12. The Applicant, and the owner if other than the Applicant, shall execute and record in the public records of Miami-Dade County, a Maintenance Covenant, in a form as drafted by the City Attorney and approved by the City Commission, which complies with the requirements of Land Development Code Section 20-8.9 and which contains all commitments made and conditions imposed as part of the approval of the Application.
13. Applicant, and the owner if other than the Applicant, shall comply with all requirements set forth in Section 20-8.9 in addition to those set forth in this Resolution unless there is a conflict, in which event Section 20-8.9 shall take precedent.
14. If during the review process it is determined that the development, as proposed, will potentially cause adverse impact, the Planning Department shall recommend remedial measures to eliminate or reduce, to the extent possible, these impacts. Development



projects that are recommended for remedial measures will not be required to submit a new application unless it is determined by the Department that additional changes which would have the effect of increasing densities, square footage or altering the height or use of a Development have been made. Remedial measures may include, but are not limited to:

- i. Additional screening or buffering;
- ii. Additional landscaping;
- iii. Building orientation;
- iv. Relocation of proposed open space, or alteration of the use of such space;
- v. Pedestrian and bicycle safety and access;
- vi. Changes to ingress and egress;
- vii. Addressing traffic flow to and from the development to avoid intrusion on local streets in nearby single-family residential areas; or
- viii. Improvement of the streets adjacent to the project, if applicable.

15. The required bike room and number of bicycle spaces for both residents and the public must be maintained in perpetuity as a requirement of being granted a Bonus Floor.
16. The required Plaza must be maintained and open to the public in perpetuity as a requirement of being granted a Bonus Floor.
17. Pursuant to Sec. 20-4.3, LDC, Sign Regulations, a Master Signage Plan be submitted, under separate permit.
18. An Access Agreement for the plazas must be submitted to the City and approved by the City Commission.
19. The Applicant must post a Sustainability Fee Payment Bond or fully pay the Sustainability Fee in an amount equal to five Percent (5%) of the construction value per Sec. 20-8.13 (B)(6)(a), LDC.
20. The Applicant must pay an Art in Public Places fee to the City in an amount set forth in the City's Code of ordinances before any permit is issued.
21. The project must obtain Environmental Review and Preservation Board approval prior to issuance of a Building Permit.
22. The project must meet the requirements of Sec. 20-4.4(G), LDC relating to Electric Vehicles.
23. The Application meet the requirements of Sec. 20-8.13(B), LDC, Green Buildings.
24. A signed and sealed Stormwater Pollution Prevention Plan must be submitted at the time of application for a building permit.
25. A signed and sealed Paving, Grading and Drainage Plan be submitted at the time of application for a building permit.
26. Preliminary drainage calculations must be submitted to the City's Public Works Department showing that the site can maintain its required drainage.
27. All ADA standards and requirements must be met.
28. All tree grates and sidewalk widths must meet ADA requirements.
29. The column in the site triangle must be addressed to the satisfaction of the City before a certificate of Use or Occupancy may be issued.



30. The Auto Turn diagram be corrected before the issuance of a building permit.
31. The project must meet the requirements of Sec. 20-8.4(D) relating to Affordable Housing including plans for and construction of 32 affordable housing units within the project.
32. A signed and sealed Geotechnical Report confirming concrete sidewalk and pavement sections and hydraulic conductivity for the soils be submitted at the time of application for a building permit.

Construction General Conditions

33. A Construction and Maintenance of Traffic (MOT) Plan shall be provided by the Applicant to the Building and Public Works Departments for approval prior to start of construction. Access points by construction vehicles shall be provided within the MOT. All construction vehicles are prohibited from using Sunset Drive, unless otherwise approved by the Department.
34. The Applicant shall provide for the reconstruction of the adjoining roadways, sidewalks, and drainage to their conditions prior to construction, or better, and to provide a performance bond equal to 100% of the total cost of reconstruction.
35. The Applicant shall provide a Construction Air Quality Management Plan to the Department prior to the start of construction.
36. A Construction, Demolition and Materials Management Plan (CDMMP) must be submitted by the Applicant at time of building permit.
37. Construction shall only take place Monday through Friday during the hours of 8:00 a.m. and 5:00 p.m.

Landscaping

38. The Applicant shall meet all the minimum requirements of the City Code, Chapters 18 and 24 of the Miami-Dade County Code and specifically comply with all conditions imposed by Miami-Dade County Department of Regulatory and Economic Resources - DERM (DRER), if any.
39. The property shall be landscaped in accordance with the landscape plan, included with the site plan submittal.
40. Pursuant to Sec. 20-4.5, as may be amended, the Applicant shall preserve existing trees (including native trees) during the development of the project, wherever possible. If the trees must be removed or relocated, the Applicant shall be required to obtain a tree removal permit from the City prior to the removal and/or relocation of any tree and mitigate the impact in accordance with City requirements. If the relocated trees do not survive, the Applicant shall be required to replace the trees in compliance with City requirements.



Environmental

41. The Applicant shall meet the requirements of the Miami-Dade County Water-Use Efficiency Standards Manual, effective January 2009, as may be amended from time to time.
42. All storm water drainage systems, including the stormwater vault under the park, shall be maintained in working order at all times in order to avoid localized flooding during and after a storm. Parking shall be prohibited on top of any drainage inlet or drainage manhole.

Architecture

43. Substantial compliance with the approved plans to include: design, materials, and color palette, subject to the approval of the Environmental Review and Preservation Board.

Section 3. Severability. If any section clause, sentence, or phrase of this resolution is for any reason held invalid or unconstitutional by a court of competent jurisdiction, the holding shall not affect the validity of the remaining portions of this resolution.

Section 4. Effective Date. This resolution shall become effective upon enactment of the concurrent application submitted by Sunset-Miami Investments, Inc./Maestra Sunset, LLC to change the zoning from Transit-Oriented Development District Mixed-Use 5 (TODD MU-5) to Transit-Oriented Development District Mixed-Use 6 (TODD MU-6).

PASSED AND ADOPTED this 6th day of September, 2022.

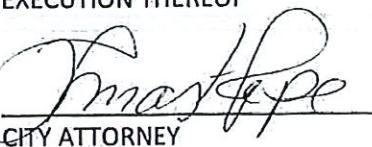
ATTEST:


CITY CLERK

APPROVED:


MAYOR

READ AND APPROVED AS TO FORM,
LANGUAGE, LEGALITY, AND
EXECUTION THEREOF


CITY ATTORNEY

COMMISSION VOTE:	4-1
Mayor Phillips:	Yea
Commissioner Gil:	Yea
Commissioner Harris:	Nay
Commissioner Liebman:	Yea
Commissioner Corey:	Yea



EXHIBIT 1
LEGAL DESCRIPTION

ALL OF TRACT A, LESS THE EAST 118 FEET OF THE NORTH 129.07 FEET, IN BLOCK 1, AND LOT 3, IN BLOCK 1, OF "ROSSWOOD", ACCORDING TO THE PLAT THEREOF, AS RECORDED IN PLAT BOOK 13, AT PAGE 62 IN THE PUBLIC RECORDS OF MIAMI-DADE COUNTY, FLORIDA, LESS THE SOUTH 25 FEET OF SAID BLOCK 1.



EXHIBIT "C"

Development Schedule

All time periods provided below are from the date of final City Commission zoning approval unless provided otherwise below.

Initiation of Site Plan review process before the ERPB 10 MONTHS

Site Plan review and approval process before the ERPB 12 MONTHS

Submittal of Building Permit Plans 14 MONTHS

Approval of Building Permit Plans / Issuance of Building Permits 26 MONTHS

Commencement of Construction 30 MONTHS

The Developer anticipates commencing construction within 3 to 9 months after the issuance of the building permits.

Complete Project Buildout 35 MONTHS

The Developer anticipates completing the buildout of the Project within 24 to 30 months after the commencement of construction.

The above listed durations are the Developer's best estimate and may be subject to change.



EXHIBIT "D"

Joinder and Consent to Development Agreement



EXHIBIT "A" OF JOINDER AND CONSENT TO DEVELOPMENT AGREEMENT

Legal Description

ALL OF TRACT A, LESS THE EAST 118 FEET OF THE NORTH 129.07 FEET, IN BLOCK 1, AND LOT 3, IN BLOCK 1, OF "ROSSWOOD", ACCORDING TO THE PLAT THEREOF, AS RECORDED IN PLAT BOOK 13, AT PAGE 62 IN THE PUBLIC RECORDS OF MIAMI-DADE COUNTY, FLORIDA, LESS THE SOUTH 25 FEET OF SAID BLOCK 1.



EXHIBIT "E"

Resolution No. 035-23-15969

Approval of this Agreement and Rescission of a previous Development Agreement Recorded in Official Records Book 31141, Pages 4597 - 4625 of the Public Records of Miami-Dade County (the "Alta Sunset, LLC Development Agreement") (without attachments)



RESOLUTION NO. 035-23-15969

A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF SOUTH MIAMI, FLORIDA, APPROVING A DEVELOPMENT AGREEMENT WITH MAESTRA SUNSET, LLC, FOR THE PROPERTY LOCATED AT 6075 SW 72 STREET, SOUTH MIAMI, FLORIDA, PURSUANT TO SECTION 20-8.9 OF THE LAND DEVELOPMENT REGULATIONS; RESCINDING A PREVIOUS DEVELOPMENT AGREEMENT FOR THE PROPERTY; AUTHORIZING THE CITY MANAGER TO EXECUTE THE NEW DEVELOPMENT AGREEMENT, RELEASE AND TERMINATION OF THE PREVIOUS DEVELOPMENT AGREEMENT, AND ALL OTHER SUPPORTING INSTRUMENTS REQUIRED BY THE LAND DEVELOPMENT REGULATIONS FOR DEVELOPMENT OF THE PROPERTY; PROVIDING FOR CORRECTIONS; IMPLEMENTATION; SEVERABILITY; AND AN EFFECTIVE DATE.

WHEREAS, Sunset Miami Investments, Inc. (the "Owner"), is the owner of property located at 6075 SW 72 Street, South Miami, Florida (the "Property"), and previously entered into a long-term ground lease for the Property with Alta Sunset, LLC (the "Previous Applicant"), to develop the Property pursuant to a Special Exception for a Large Scale Development approved by Resolution No. 074-18-15107 (the "Previous Approval"); and

WHEREAS, pursuant to Section 20-8.9(C) of the Land Development Code (the "LDC"), a Development Agreement is required in connection with a Large Scale Development approval; and

WHEREAS, in furtherance of the Previous Approval and consistent with LDC requirements, the Previous Applicant entered into a Development Agreement dated September 13, 2018 (the "Previous Development Agreement") with the City that was approved by Resolution No. 168-18-15201 and recorded in Official Records Book 31141 at Page 4597 of the Public Records of Miami-Dade County, Florida; and

WHEREAS, the Previous Applicant's interest in the Property ceased and the Owner entered into a long term ground lease with Maestra Sunset, LLC (the "Applicant") to develop the Property pursuant to a Special Exception for a Large Scale Development approved by Resolution No. 118-2215871 (the "Current Approval") for a project consisting of up to 316 residential units, 3,676 square feet of retail space, 1,353 square feet of leasing office space (collectively, the "Project"); and

WHEREAS, the Applicant seeks to enter into a new Development Agreement, in substantially the form attached in Exhibit "A," to govern development of the Project on the Property (the "New Development Agreement"); and

WHEREAS, the New Development Agreement will be supported by additional instruments required under Section 20-8.9(I) and (J) of the LDC; and

WHEREAS, the Mayor and City Commission, having held a public hearing on April 4, 2023, find that the Previous Approval and Previous Development Agreement are unnecessary given the Current Approval and the New Development Agreement, and should be rescinded effective on the date the New Development Agreement is recorded; and

WHEREAS, the City Commission further finds that the New Development Agreement meets the requirements of Section 20-8.9(C), (I) and (J) of the LDC, and wishes to (i) approve the New Development Agreement, (ii) rescind the Previous Approval and Previous Development Agreement effective on the date



the New Development Agreement is recorded, and (iii) authorize the City Manager to finalize and execute the New Development Agreement in substantially the form attached as Exhibit "A," the and.

NOW, THEREFORE, BE IT RESOLVED BY THE MAYOR AND CITY COMMISSION OF THE CITY OF SOUTH MIAMI, FLORIDA:

Section 1. Recitals and Findings. The recitals set forth in this Resolution are true and correct, and are supported by competent substantial evidence, and they are incorporated into this Resolution by reference as if set forth in full herein. The City Commission finds that the New Development Agreement meets the applicable requirements of finds that the New Development Agreement meets the requirements of Section 20-8.9(C), (I) and (J) of the LDC.

Section 2. Approval. The City Commission hereby approves the New Development Agreement in substantially the form attached as Exhibit "A."

Section 3. Rescission. The City Commission hereby rescinds the Previous Approval and Previous Development Agreement effective on the date the New Development Agreement is recorded, and the Owner, the Previous Applicant, and the Applicant, are released from any obligations thereunder.

Section 4. Authorization. The City Commission hereby authorizes the Manager to finalize and execute (i) the New Development Agreement in substantially the form attached as Exhibit "A," (ii) the Release and Termination of the Previous Development Agreement in substantially the form attached as Exhibit "B," and (iii) additional instruments required under Section 20-8.9(I) and (J) of the LDC for development of the Project on the Property.

Section 5. Corrections. Conforming language or technical scrivener-type corrections may be made by the City Attorney for any conforming amendments to be incorporated into the final Resolution for signature.

Section 6. Implementation. That the City Manager is authorized to execute any required documentation or take any action that is reasonably necessary to implement the purpose of this Resolution.

Section 7. Severability. In the event any portion or section of this Resolution is determined to be invalid, illegal or unconstitutional by a court or agency of competent jurisdiction, such decision shall in no way affect the remaining portions of this Resolution, which shall remain full force and effect.

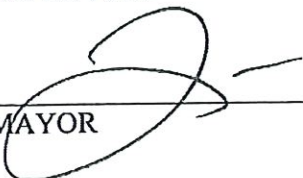
Section 8. Effective Date. This Resolution shall become effective immediately upon adoption.

PASSED AND ADOPTED this 4th day of April, 2023.

ATTEST:


CITY CLERK

APPROVED:


MAYOR



READ AND APPROVED AS TO FORM,
LANGUAGE, LEGALITY AND
EXECUTION THEREOF



CITY ATTORNEY
WEISS SEROTA HELFMAN
COLE & BIERMAN, P.L.

COMMISSION VOTE:

Mayor Fernández:

Vice Mayor Bonich:

Commissioner Corey:

Commissioner Calle:

Commissioner Liebman:

4-0

Yea

Yea

Yea

Yea

Absent



ADDENDUM TO THE DEVELOPMENT AGREEMENT

THIS ADDENDUM TO THE DEVELOPMENT AGREEMENT (the "Addendum") is entered into this 31 day of August, 2023, by and between the City of South Miami (the "City"), Maestra Sunset, LLC, a Florida limited liability company (the "Developer"), Alta Sunset LLC ("Alta Sunset") and Sunset Miami Investments., Inc, a Florida corporation (the "Owner"). The City, Developer, Alta Sunset and Owner are collectively addressed as the "Parties."

WITNESSETH:

WHEREAS, the Owner is the property owner of the property located at 6075 SW 72 Street, South Miami, Florida, as described in Exhibit "A" (the "Property"), and previously entered into a long-term ground lease for the Property (the "Ground Lease") with Alta Sunset, to develop the Property pursuant to a Special Exception for a Large Scale Development approved by Resolution No. 074-18-15107 (the "Previous Approval");

WHEREAS, pursuant to Section 20-8.9(C) of the Land Development Code (the "LDC"), a Development Agreement is required in connection with a Large Scale Development approval;

WHEREAS, in furtherance of the Previous Approval and consistent with LDC requirements, Alta Sunset entered into a Development Agreement dated September 13, 2018 (the "Alta Development Agreement") with the City that was approved by Resolution No. 168-18-15201; and recorded 27 in Official Records Book 31141 at Page 4597 of the Public Records of Miami-Dade County, Florida;

WHEREAS, Alta Sunset has entered into an agreement to sell and assign its interests in the Ground Lease to the Developer;

WHEREAS, Alta Sunset, as Seller and Maestra Sunset, LLC, as Buyer, are parties to that certain Purchase and Sale Agreement dated March 8, 2021, as amended by that certain (i) First Amendment to Purchase and Sale Agreement dated December 28, 2021, (ii) Second Amendment to Purchase and Sale Agreement dated December 29, 2022; and (iii) that certain Third Amendment to Purchase and Sale Agreement dated on or about the date hereof (collectively, the "Purchase Agreement");

WHEREAS, Owner and Developer have agreed to develop the Property pursuant to a Special Exception for a Large Scale Development approved by Resolution No. 118-2215871 (the "Maestra Sunset Approval") for a project consisting of up to 316 residential units, 3,676 square feet of retail space, 1,353 square feet of leasing office space (collectively, the "Project");

WHEREAS, on April 4, 2023, the City Commission authorized the City Manager to enter into a new Development Agreement with the Developer and the Owner memorializing the terms and conditions of the Project's approvals through a new Development Agreement (the "Maestra Sunset Development Agreement"), as evidenced by Resolution No. 035-23-15969; and



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WHEREAS, the Parties desire to enter into an addendum to the Maestra Sunset Development Agreement in order to allow Alta Sunset and Developer to submit, process and prepare all applications, plans, specifications, permits and approvals, and related information and documents as may be required prior to the Developer closing on Alta Sunset's interest in the Ground Lease.

NOW, THEREFORE, for the covenants and considerations herein contained and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. **Temporary Assumption of the Developer's Duties and Responsibilities:** Alta Sunset agrees to assume all duties and responsibilities of the Developer under the Maestra Sunset Development Agreement until such time that the Purchase Agreement is completed and Alta Sunset's interest and obligations under the Ground Lease are assigned to Developer. Alta Sunset's assumption of Developer's obligations under the Maestra Sunset Development Agreement shall continue until such time as Owner and Developer notify the City in writing of the Developer closing on the assignment of the Ground Lease. However, notwithstanding anything herein to the contrary, in the event the Purchase Agreement is terminated for any reason, including by mutual consent of the parties or by judicial order, the Maestra Sunset Development Agreement shall automatically terminate, and all administrative or public hearing approvals granting development rights under the Development Agreement shall be void and of no effect on the development of the Property. Additionally, if the building permit for the Project has not been issued by May 1, 2024, (the "**Building Permit Expiration Date**" as defined in the Ground Lease), the Owner may terminate and declare null and void the Development Agreement. In the event the Purchase Agreement is terminated as described above or the Owner terminates and declares null the Development Agreement as described in this paragraph, the City reserves the right to consider and enact legislation effectuating and memorializing the termination, rescission, and revocation of the Previous Approval, Maestra Sunset Approval, Alta Development Agreement, and Maestra Sunset Development Agreement, and the Owner, Developer, and Alta Sunset waive any objection to any City action consistent with this paragraph 1.
2. **No Other Modification:** Except as specifically modified by this Addendum under paragraph 1, each and every other term and condition of the Maestra Sunset Development Agreement shall remain unchanged and in full force and effect without modification.

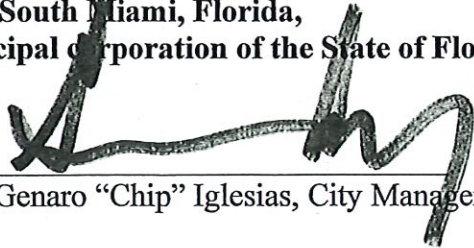
[Signature Pages to Follow]



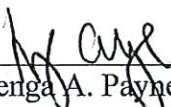
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IN WITNESS WHEREOF, the Parties have executed this Addendum to the New Development Agreement as of the date first written above.

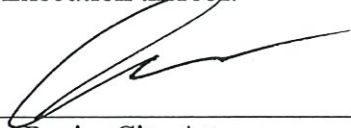
**City of South Miami, Florida,
a municipal corporation of the State of Florida**

By: 
Genaro "Chip" Iglesias, City Manager

ATTEST:


Nkenga A. Payne, CMC, City Clerk

Approved as to Form, Language, Legality,
and Execution thereof:


Tony Recio, City Attorney



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WITNESSES:

ALTA SUNSET, LLC,
a Florida limited liability company

By: Nicolas Noyce
Print Name: Nicolas Noyce

By: [Signature]
Print Name: RAIMUNDO OMETO
Title: MANAGER

By: Olando Ortiz
Print Name: Olando Ortiz

STATE OF FLORIDA)
) ss:
COUNTY OF MIAMI-DADE)

The foregoing instrument was acknowledged before me by means of ☒ physical presence or ☐ online notarization, this 31 day of AUGUST, 2023, by RAIMUNDO OMETO as MANAGER of Alta Sunset, LLC, a Florida limited liability company. He/She is ☒ personally known to me or ☐ who has produced _____ as identification.

[NOTARIAL SEAL]



JOCELYN FERRADAS
Commission # HH 421882
Expires July 26, 2027

[Signature]
Print Name: JOCELYN Ferradas
Notary Public, State of Florida
Commission #: HH 421882
My Commission Expires: 7/26/2027

WITNESSES:

MAESTRA SUNSET, LLC,
a Florida limited liability company

By: Nicolas Noyce
Print Name: Nicolas Noyce

By: [Signature]
Print Name: Nicolas Sommerhoff
Title: Manager

By: Olando Ortiz
Print Name: Olando Ortiz



)

The foregoing instrument was acknowledged before me by means of ☒ physical presence or ☐ online notarization, this 31 day of August, 2023, by Nicolas Springer-Hoffas Manager of Maestra Sunset, LLC, a Florida limited liability company. He/She is ☒ personally known to me or ☐ who has produced as identification.

[NOTARIAL SEAL]



JOCELYN FERRADAS
Commission # HH 421882
Expires July 26, 2027

Joelyn Ferradas
Print Name: JOCELYN Ferradas
Notary Public, State of Florida
Commission #: HH421882
My Commission Expires: 7/26/2027



WITNESSES:

By: [Signature]

Print Name: G.F. QUESADA

By: [Signature]

Print Name: Sylvia Otero

OWNER:

**SUNSET MIAMI INVESTMENTS, INC.,
a Florida for profit corporation**

By: [Signature]

Print Name: Teresa Sordo

Title: Pres

STATE OF FLORIDA)
) ss:
COUNTY OF MIAMI-DADE)

The foregoing instrument was acknowledged before me by means of ☒ physical presence
or ☐ online notarization, this 25th day of AUGUST, 2023, by
TERESA SORDO, as PRES. of Sunset Miami Investments, Inc., a Florida for
profit corporation. He/She is ☒ personally known to me or ☐ who has produced
as identification.

[NOTARIAL SEAL]

[Signature]
Print Name: Gerardo Frank Quesada
Notary Public, State of Florida
Commission # HH 314043
My Commission Expires: 1-20-2027



EXHIBIT "A"

Legal Description

ALL OF TRACT A, LESS THE EAST 118 FEET OF THE NORTH 129.07 FEET, IN BLOCK 1, AND LOT 3, IN BLOCK 1, OF "ROSSWOOD", ACCORDING TO HE PLAT THEREOF, AS RECORDED IN PLAT BOOK 13, AT PAGE 62 IN THE PUBLIC RECORDS OF MIAMI-DADE COUNTY, FLORIDA, LESS THE SOUTH 25 FEET OF SAID BLOCK 1.

STATE OF FLORIDA, COUNTY OF MIAMI-DADE
I HEREBY CERTIFY that this is a true copy of the
original filed in this office on Sept 18 day of 23
AD 20
WITNESS my hand and Official Seal.
Clerk of Circuit and County Courts
By [Signature] D.C.



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